IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **26.08.2024** THROUGH VIDEO CONFERENCING

PRESENT: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

IN THE MATTER OF **:** Madanlala Steels and Forgings Pvt Ltd and Ors

MAIN PETITION NUMBER **:** CP(CAA)/8(CHE)/2023

(IA/MA) APPLICATION NUMBERS

IA(CA)/138(CHE)/2024

ORDER

Present: Ld. Counsel Shri. Abishek Raman for the Applicant.

Vide separate order pronounced in Open Court, the application is allowed and disposed of.

Sd/- **Sd/-**

(VENKATARAMAN SUBRAMANIAM) **(SANJIV JAIN)**
MEMBER (TECHNICAL) MEMBER (JUDICIAL)

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IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – I, CHENNAI

IA(CA)/138(CHE)/2024
In
CP(CAA)/8/(CHE)/2023
In
CA(CAA)/65/(CHE)/2022

(Filed under Section 231 of the Companies Act 2013 and Rule 11 of the NCLT Rules, 2016)

*In the matter of **M/S. Tamil Nadu Rolling Mills Limited***

M/s. TamilNadu Rolling Mills Limited,
A company incorporated under the Companies Act, 1956,
Having its registered office at,
Flat No. 4/5, Third Floor, S K Enclave,
Old No. 47, New No. 4, Nowroji Road,
Chetpet, Chennai – 600 031.

…Applicant / Transferee Company

Present:

For Applicant : Pawan Jhabakh, Advocate

Order Pronounced on 26th August 2024

CORAM:

SANJIV JAIN, MEMBER (JUDICIAL)
VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

O R D E R

(Heard through Video Conferencing)

M/s. Tamil Nadu Rolling Mills Limited, the Applicant herein, has filed an application seeking permission to cause amendment to

"**Schedule A" 'Property 2'** of the Scheme to reflect the correct description of the immovable property belonging to the Transferor Company 1.

2. It is stated that M/s. Madanlal Steels and Forgings Private Limited, M/s. Madanlal Forge Private Limited, M/s. Nutee Oil & Energy Private Limited and M/s. Deccan Properties Private Limited (hereinafter referred to jointly as the **'Transferor Companies'**) along with the Applicant / Transferee Company had approached this Tribunal for sanction of the Scheme of Amalgamation of Madanlal Steels and Forgings Private Limited and Madanlal Forge Private Limited and Nutee Oil & Energy Private Limited and Deccan Properties Private Limited with Tamil Nadu Rolling Mills Limited by filing first motion application vide CA(CAA)/65(CHE)/2022. This Tribunal passed an order dated 12.01.2023 dispensing with the meetings of the shareholders and creditors of the transferor companies and the Applicant / Transferee company. Subsequently the companies filed the second motion petition in CP(CAA)/8(CHE)/2023 which was admitted by this Tribunal vide order dated 27.01.2023. Thereafter the

Tribunal sanctioned the Scheme of Amalgamation by an order dated 07.06.2023 in CP(CAA)/8(CHE)/2023.

3. It is stated that subsequent to the sanction of the scheme, the Applicant / Transferee company has come to know that there has been an inadvertent error in the scheme with respect to description of the '**Property 2'** in '**Schedule A'** to the scheme in CP(CAA)/8(CHE)/2023. The Applicant has tabulated the erroneous and correct version which is as under.

The present erroneous description of **'Property 2'** in '**Schedule A**' to the Scheme	**2. Property No.2 (Subject to Clause 8.1)** All that piece and parcel of the land comprised in survey no.224/6 of 141, kottivakkam village, Saidapet Taluk, measuring North to South 88 feet and East to West 101 feet, admeasuring 25 cents, bounded on the, North By: Naina Nadar's Land South By: Land belonging to Sakku Bai and others East By land belonging to C. Pandarinathan West By: Land belonging to Kishore Jagadeesan together with right of passage on the common road, situated on the western side, situated within the registration district of Chengalpet and sub registration district of Saidapet.

The Correct description of **'Property 2'** in '**Schedule A**' to the Scheme	**2. Property No.2 (Subject to Clause 8.1)** All that piece and parcel of land measuring an extent of 19 Cents (equivalent to 8276 sq.ft.), comprised in Survey No.224/6 part, present Survey No.224/36 as per Patta No.18203, situated at Kottivakkam Village, presently Sholinganallur Taluk, Chennai District and bearing Plot No.4, Kaveri Nagar, Kottivakkam, Chennai – 600 041 together with the right of passage in the Common Road and bounded on the, North By – Common Passage / Road, South By – Land belonging to K. Karthikeyan, S/o. Sakku Bai, East By – Plot 3 in the remaining portion of land comprised in Survey No.224/6, West By – Plot 5 in the remaining portion of land comprised in Registration District of Adyar.

4. It is stated that the error was due to inadvertent failure to take into consideration the memo of compromise dated 21.07.1994 filed in O.S. No. 312 of 1994 before the Court of District Munisiff at Tambaram. It is stated that the documents and the decree would evidence that Transferor Company 1 is the absolute owner of **'Property 2'** in **'Schedule A'**.

5. It is stated that the amendment to the scheme of amalgamation is of paramount importance to the Applicant / Transferee Company as the Applicant / Transferee Company is unable to enter any further conveyance transactions with third party buyers / investors.

6. We have heard Ld. Counsel Shri. Pawan Jhabakh for the Applicant and perused the scheme and the documents.

7. It is seen that the Applicant / Transferor Company had given the erroneous description of **'Property 2'** in **'Schedule A'** to the scheme, as above in the table, though the correct description of **'Property 2'** in **'Schedule A'** is as under:

The Correct description of **'Property 2'** in '**Schedule A**' to the Scheme	**2. Property No.2 (Subject to Clause 8.1)** All that piece and parcel of land measuring an extent of 19 Cents (equivalent to 8276 sq.ft.), comprised in Survey No.224/6 part, present Survey No.224/36 as per Patta No.18203, situated at Kottivakkam Village, presently Sholinganallur Taluk, Chennai District and bearing Plot No.4, Kaveri Nagar, Kottivakkam, Chennai – 600 041 together with the right of passage in the Common Road and bounded on the, North By – Common Passage / Road, South By – Land belonging to K. Karthikeyan, S/o. Sakku Bai, East By – Plot 3 in the remaining portion of land comprised in Survey No.224/6, West By – Plot 5 in the remaining portion of land comprised in Survey No.224/6 and situated within the Registration District of South Chennai and Sub – Registration District of Adyar.

8. The documents along with the decree passed in O.S. No. 312 of 1994 based on the memo of compromise dated 21.07.1994 passed by the District Munisiff at Tambaram would show that the Transferor Company 1 was the absolute owner of the **'Property 2'** in **'Schedule A'**. The Transferor Company has been amalgamated under the scheme of amalgamation vide sanction order dated 07.06.2023 in CP(CAA)/8(CHE)/2023.

9. Having considered the submissions made above and the fact that it was an inadvertent error in the description of the property, we permit the Applicant / Transferee Company to rectify the error in the scheme and allow the amendment of the relevant portion i.e. the description of the **'Property 2'** in **'Schedule A'** to the scheme of amalgamation, since it is of paramount importance as the Applicant / Transferee Company would not be able to enter any further conveyance transactions with the third party buyers / investors.

10. The application is **allowed** and accordingly **disposed of**. It is ordered that this order shall form part of the scheme approved by this Tribunal.

11. File be consigned to records.

Sd-
VENKATARAMAN SUBRAMANIAM
MEMBER (TECHNICAL)

Sd-
SANJIV JAIN
MEMBER (JUDICIAL)